

28 March 2023
Juror absent

Tuesday, 28 March 2023
(10.30 am)

(In the absence of the jury)

Housekeeping

MR JUSTICE GOSS: Mr Johnson, Mr Myers, I gather you have been informed that, unfortunately, one juror is absent due to illness, so there's no prospect of court being able to sit today, I'm afraid, with the jury.

One hopes he will recover by tomorrow, but we just don't know. So what I propose to do is to -- I don't see any need for the jury to be brought into court to be told that we're not sitting today, but they should, unless they hear to the contrary, attend tomorrow morning.

MR JOHNSON: Yes.

MR MYERS: My Lord, yes.

MR JUSTICE GOSS: Thank you very much.

I think if you could do that, please, usher. Just say, if they don't already know, that one of their number is unfortunately ill, not able to be here today, but we hope will be fit tomorrow and the usual arrangements with phoning in at 4 o'clock this afternoon. Thank you very much.

If there's any issue when you communicate that to the jury, would you please let me know? Thank you very much.

I don't know how this is going to impact the availability of the main witness who was scheduled for today.

MR JOHNSON: We'll see what happens tomorrow. If we can get going tomorrow, we will.

MR JUSTICE GOSS: I just don't see there's any alternative but to take it day by day. Is there anything that can be done in relation to the trial in court? I appreciate that work, if it hasn't been completed, can be ongoing in relation to other aspects of the evidence.

MR MYERS: Yes, it will. There's nothing that we identify, my Lord.

MR JUSTICE GOSS: There's nothing that I'm required to do?

MR JOHNSON: No, thank you.

MR JUSTICE GOSS: Right. Well, unless either of you have anything else to say, that's it for today, unfortunately, as far as the court is concerned.

MR MYERS: Thank you, my Lord.

MR JUSTICE GOSS: Mr Myers, as far as Ms Letby is concerned, do you want to --

MR MYERS: We'd be grateful if she could remain we would like to spend a little time this morning. There are other matters we need to deal with too, but certainly I shall be going down to see Ms Letby, as may others.

Thank you, my Lord.

MR JUSTICE GOSS: Did you hear that all right? Mr Myers will be down and others, but I don't know for how long.

They will inform you obviously as to when they no longer require Ms Letby to be here and then whatever arrangements can be made will no doubt be made in relation to transport.

MR MYERS: Thank you, my Lord.

MR JUSTICE GOSS: Thank you. That's it, thank you very much.

(10.35 am)

(The court adjourned until 10.30 am on Wednesday, 29 March 2023)